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The River as Witness: Ndem Shrines and the Indigenous Jurisprudence of Water in the Cross River Estuary

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ABSTRACT

Long before the arrival of British colonial courts and the Nigerian state's legal apparatus, the communities of the Cross River estuary had developed systems of adjudication centred on the water spirits known as Ndem. Ndem shrines, located at strategic points along rivers, creeks, and the estuary itself, functioned as courts of last resort where disputes that could not be resolved through ordinary social processes were brought for spiritual adjudication. Parties to a dispute would swear oaths at the shrine, invoking the spirit to reveal the truth and to punish the guilty. The fear of spiritual sanction, believed to manifest as illness, drowning, or other misfortunes, provided a powerful enforcement mechanism that ensured compliance with shrine judgments. This paper examines the indigenous jurisprudence of Ndem through a critical reading of colonial court records, missionary accounts, and early ethnographic sources, supplemented by comparative evidence from oath-based adjudication in other African societies. It argues that Ndem shrines constituted a functional legal system with identifiable procedures and enforcement mechanisms, while acknowledging the fragmentary nature of the surviving evidence and the interpretive difficulties this presents. The paper analyses the relationship between shrine adjudication and other forms of dispute resolution, including family mediation, chiefly courts, and, after the colonial period, statutory courts. It argues that the decline of Ndem jurisprudence, driven by economic change, Christianisation, and the expansion of state legal institutions, has left a gap in access to justice that the formal legal system has been unable to fill. It concludes by reflecting on the potential for recognising and integrating indigenous legal institutions into contemporary justice systems, while cautioning against romanticised accounts that obscure the coercive and hierarchical dimensions of shrine adjudication.

Keywords: Ndem shrines; indigenous jurisprudence; legal pluralism; Cross River estuary; oath-based adjudication.

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1. INTRODUCTION

The Cross River estuary, where the great river meets the Atlantic in what is now south-eastern Nigeria, has long been a site of complex legal and spiritual ordering. Before the imposition of British colonial rule and the subsequent consolidation of the Nigerian state, the communities of this region developed systems of dispute resolution that were inseparable from their cosmology. Central to these systems were the Ndem, aquatic spirits believed to inhabit the rivers, creeks, and estuary waters, whose shrines served as tribunals for disputes that could not be resolved through ordinary social processes.

The colonial encounter fundamentally disrupted these institutions. British administrators, missionaries, and legal officers brought with them assumptions about law and religion that rendered Ndem jurisprudence invisible or, worse, classified it as superstition. The Native Courts established under colonial rule operated on principles that were alien to the relational and spiritual logic of shrine adjudication. Yet the decline of Ndem jurisprudence did not necessarily produce a superior system of justice. It produced a gap, one that has left many communities without accessible, trusted, and enforceable mechanisms for resolving disputes (Inameti, 2013).

This paper examines the indigenous jurisprudence of Ndem as a functional legal system. It argues that Ndem shrines operated with identifiable procedures and enforcement mechanisms, and that understanding this system requires taking seriously the cosmological premises on which it was based. The paper asks: what were the procedures, evidentiary standards, and enforcement mechanisms of Ndem adjudication, and how did they relate to other forms of dispute resolution in Efik society? Drawing on colonial records, missionary accounts, and comparative evidence from oath-based adjudication in other African societies, the paper reconstructs the practices of Ndem adjudication while acknowledging the fragmentary and partial nature of the surviving evidence.

The significance of this inquiry extends beyond the Cross River estuary. Across Africa, indigenous legal systems have been marginalised or suppressed by colonial and postcolonial states, often in the name of modernity or development. Yet these systems frequently continue to operate in parallel with state law, particularly in rural areas where access to formal courts is limited. Understanding institutions like the Ndem shrines offers lessons for contemporary debates about legal pluralism, access to justice, and the decolonisation of law.

The paper proceeds as follows. The literature review examines debates about legal pluralism and the existing scholarship on Ndem cosmology and Efik jurisprudence. The theoretical framework outlines the legal pluralist approach that guides the analysis. The methodology section explains the sources used and the interpretive challenges they present. The analysis reconstructs the procedures and enforcement mechanisms of Ndem adjudication, examines its decline, and considers its contemporary legacy. The conclusion reflects on the implications for legal pluralism and access to justice in Nigeria.

2. LITERATURE REVIEW

2.1 Legal Pluralism and Indigenous Jurisprudence

The study of indigenous jurisprudence has been shaped by broader debates about legal pluralism. Sally Engle Merry (1988) argued that legal pluralism is not a deviation from a presumed norm of state monopoly on law, but rather a pervasive feature of social life. She distinguished between "classic" legal pluralism, which concerned the coexistence of different legal orders in colonial and postcolonial societies, and "new" legal pluralism, which examines the coexistence of multiple normative orders within any social field, including Western societies. For Merry, the challenge for legal scholarship is to take non-state legal orders seriously as law, rather than treating them as precursors to or distortions of state law.

John Griffiths (1986) advanced a more radical version of this argument, insisting that legal pluralism is the norm and that the idea of a single, unified legal system is an ideology of the modern state. Griffiths distinguished between the "juristic" sense of legal pluralism, which examines how state law recognises or incorporates other normative orders, and the "social scientific" sense, which examines the empirical coexistence of multiple normative orders regardless of state recognition. The social scientific approach is more useful for understanding institutions like the Ndem shrines, which operated independently of state recognition and derived their authority from spiritual rather than secular sources.

Within African legal studies, scholars have examined customary courts, chiefs'

courts, and other indigenous adjudicatory institutions. However, comparatively less attention has been paid to the specifically religious or spiritual dimensions of indigenous jurisprudence. This is a significant omission, because in many African societies, the boundary between law and religion is not the same as it is in Western legal traditions. Adjudication may involve oath-taking, divination, ritual, and appeals to spiritual entities. To analyse such systems without attending to their spiritual dimensions is to miss what makes them work.

Recent work on legal pluralism in Africa has emphasised the adaptive character of customary justice systems. A study of African customary justice notes that it highlights the vitality and continued relevance of customary justice at a time when customary courts have waned or even disappeared in many postcolonial African nations (Werbner & Werbner, 2021). This observation is particularly relevant to the Ndem case, where the formal institutions of shrine adjudication have disappeared but the underlying logic of oath-based justice persists in other forms.

2.2 The Ndem in Efik and Cross River Cosmology

The Ndem are the aquatic spirits of the Cross River region, particularly associated with the Efik people but also recognised by their Ibibio, Ejagham, and other neighbours. Rosalind Hackett, who conducted research in Calabar, describes the Ndem as "mainly aquatic spirits which served as tutelary deities of the Efik people," to whom prayers were offered for "blessings, fertility, and forgiveness" (Hackett, n.d., p. 3). Hackett notes that the Efik ndem pantheon was complex "in terms of numbers and gender" (Hackett, n.d., p. 3). In Efik cosmology, the Ndem is regarded as God's viceroy on earth, the aquatic deity whom God has given the power to rule and control the water as his representative (Udoka, 2025, p. 3).

The Ndem were not a single deity but a complex pantheon. The head of all local Ndem was Ndem Efik, described by one colonial observer as "the tutelary spirit of Calabar" (Talbot, 1926, as cited in Hackett, n.d.). The priest of Ndem Efik, known as Oku Ndem, held a position of considerable authority. Waddell, a missionary writing in 1846, described him as "the remains of the greatest man in the country, being the nearest approach to a Pontifex Maximus that their native superstition admits of. He had charge of the Ndem Efik, or Great Calabar juju. To him the chiefs of the land made lowly reverence, while he made obeisance to none, and before him and his idol the covenants of tribes and families were sealed by oath" (Waddell, 1863, as cited in Latham, 1973, p. 30).

The Ndem were believed to reside in specific water bodies. The shrine of Ndem Efik was located at Parrot Island, in the Cross River estuary, downriver from Calabar. Other Ndem had their own shrines at other strategic points. These shrines were not merely places of worship; they were jurisdictional centres, with authority over specific territorial waters and the communities associated with them. Talbot (1926) noted that slaves who took refuge at the Ndem Efik shrine belonged to the deity, and that the priest received tribute in the form of leopard skins. This suggests that the shrine exercised a form of jurisdiction over persons who sought its protection, a function analogous to the right of sanctuary in medieval European law.

2.3 The Judicial Functions of Ndem Shrines

Recent scholarship has begun to recover the juridical functions of Ndem shrines. Udoka (2025), in a study of what he terms "choreographic jurisprudence," argues that "in pre-colonial Efik, Anaañ, and Ogoni societies, rivers were legal persons—Ndem, Ekanem, Barina—governed through masquerade, procession, song, and taboo. Ekpe law, Ekpo law, and ekombi dance functioned as a choreographic jurisprudence that regulated fishing, waste, and natural oil seeps" (p. 3). Udoka positions Ndem as a form of "choreo-ecological jurisprudence," in which the river itself was a legal subject and the rituals performed at its shrines were acts of adjudication and enforcement.

A study of the Ejagham sacred landscape, closely related to the Efik and sharing the Ndem cosmology, describes how "sacred sites such as Ndem and Nnem shrines and Ekpe lodges functioning as courts with territorial authority over specific water bodies" (Eba, 2026, p. 8). The same study notes that "the juridical functions of shrines and oracles offer insights for alternative dispute resolution. In contexts where the formal court system is slow, expensive, and distant, indigenous justice mechanisms remain accessible and trusted" (Eba, 2026, p. 9).

The Ndem shrine was not the only adjudicatory institution in Efik society. As one historical study explains, "originally the three integrating ties of Efik society were the Ndem cult, the secret society, and the village council" (Latham, 1973, p. 4). Each had its own sphere of authority. The village council, headed by the obong, dealt with general matters and foreign relations. The Ekpe secret society, which gained ascendancy as the slave trade replaced fishing as the basis of the economy, exercised its own forms of social control and dispute resolution. The Ndem priesthood, headed by the Oku Ndem, had authority over spiritual matters and, crucially, over the most serious disputes—those that could not be resolved through ordinary social processes. As Latham (1973) explains, "as the slave trade replaced fishing as the basis of the Efik economy, the importance of the Ndem cult diminished, and the new cult of Ekpe, connected to the refurbished secret society, largely superseded it in influence" (p. 4). Yet the Ndem priesthood retained its distinctive position; "only in the case of the Ndem priesthood, or Oku Ndem, was there no change" (Latham, 1973, p. 6).

Inameti (2013) provides a detailed account of the pre-colonial Efik judicial system, demonstrating that it possessed procedures for hearing cases, rules of evidence, and mechanisms for enforcement. While Inameti's focus is on the chiefly courts and the Ekpe society rather than the Ndem shrines specifically, his work establishes that the Efik had developed sophisticated legal institutions long before colonialism. The Ndem shrines should be understood as part of this broader juridical landscape.

2.4 Oath-Based Adjudication in Comparative Perspective

The Ndem oath was not an isolated phenomenon. Oath-based adjudication was widespread in pre-colonial Africa, and comparative evidence from other societies can illuminate the procedures and logic of Ndem adjudication. Among the Tiv of central Nigeria, the Swem oath served as a mechanism for correcting wrongs and settling disputes. The Tiv believed that swearing falsely before Swem would bring death or misfortune, and this belief made the oath an effective tool for social control. As Irom et al. (2025) explain, the ritual process was typically public, with disputants and witnesses

gathered in the presence of elders. Participants recited formal declarations of innocence and invoked the spiritual authority of Swem to judge veracity. This communal aspect reinforced shared moral codes and collective responsibility, making Swem "not merely a personal ordeal but a social mechanism of accountability that preserves harmony and deters antisocial behaviour" (Irom et al., 2025, p. 7).

Among the Idoma, the Alekwu oath operated similarly. Alekwu was believed to have the power to protect, reward, and punish. Anyone who took the Alekwu oath falsely was believed to die. The mere threat of the Alekwu oath was often sufficient to induce confession or settlement, because no one wanted to risk the spiritual consequences of a false oath. As Unogwu and Odeome (2025) note, "indigenes resort to 'Alekwu's shrine as the ultimate arbiter to settle scores or disputes when it turns out and to be very controversial" (p. 107). The Idoma believed that "anyone who takes the 'Alekwu Oath' falsely will die. And as usual with humans, nobody deliberately wants to die, so whenever there is a threat of 'Alekwu Oath,' in any dispute, the truth must be revealed and matter settled amicably" (Unogwu & Odeome, 2025, p. 108).

Among the Ibibio, the mbiam oath served a comparable function. The Ibibio believed in "the supernatural powers of mbiam (oath) [which] promote conflict resolution and social control in general" (Offiong, 1997, p. 441). The mbiam was used as "the last resort in knowing the truth and for the fact that every Ibibio adult knew that if he or she swore on it deceitfully he or she was bound to die" (Offiong, 1997, p. 442). The Idiong society administered ordeals (ukang) or native oaths (mbiam) in order to establish the truth, and the belief in the potency of mbiam was central to the traditional system of social control (Akpan, 2017).

Further afield, the Ashanti of Ghana developed what Rattray described as an "oath-procedure" that was so sophisticated that "only one witness, and that a person who has been agreed upon by both sides, may be called in the case" (Rattray, 1929, as cited in KU Leuven, n.d.). Rattray was convinced of its efficacy, writing that "the idea of a witness being friendly or hostile to one or other of the litigants seemed unthinkable. The sanctity and nature of the oaths taken and the deadly sanctions behind them seemed to the Ashanti mind to rule out most of the possibility of bias" (Rattray, 1929).

In Sierra Leone, oath-taking remains a central feature of both customary and formal justice systems. A recent study notes that "customary oath-taking commands strong local legitimacy" but also that "empirical findings reveal such practices may operate through fear, reinforce gendered power relations and lead to coercion and psychological harm" (Oath-Taking, Legal Pluralism and Human Rights in Sierra Leone, 2026, p. 1). This dual character—legitimate but potentially coercive—is a theme that runs through the comparative literature and should inform any assessment of Ndem adjudication.

3. THEORETICAL FRAMEWORK

This study is grounded in a framework of legal pluralism and indigenous jurisprudence. Legal pluralism, as developed by Merry (1988) and Griffiths (1986), rejects the assumption that law is a monopoly of the state. It recognises that multiple normative orders coexist within any social field, and that these orders may be complementary, overlapping, or in conflict. In the context of the Cross River estuary, the relevant

normative orders include the indigenous jurisprudence of Ndem, the customary law administered by chiefs and village councils, the Ekpe lodge law, and the statutory law of the colonial and postcolonial state.

Indigenous jurisprudence, as used here, refers to the body of law developed by indigenous communities prior to or independent of colonial intervention. This is not to suggest that indigenous law is static or unchanging; like all legal systems, it evolves in response to social, economic, and political conditions. But it is to insist that indigenous law be analysed on its own terms, according to its own logic, rather than simply as a precursor to or deviation from state law.

The framework of legal pluralism allows us to see the Ndem shrines not as primitive or superstitious institutions but as tribunals operating within a distinct normative order. The fact that the source of their authority was spiritual rather than secular does not make their judgments any less legal. As Udoka (2025) argues, the Ndem were "legal persons," and the rituals performed at their shrines were acts of jurisprudence. The challenge is to reconstruct the content of that jurisprudence—its procedures, evidentiary standards, and enforcement mechanisms—from the fragmentary sources available.

A legal pluralist approach also requires attention to the power dynamics within and between normative orders. Oath-based adjudication was not a neutral mechanism; it was embedded in relations of gender, age, and status. In Sierra Leone, for example, oath-taking has been shown to "reinforce gendered power relations and lead to coercion and psychological harm" (Oath-Taking, Legal Pluralism and Human Rights in Sierra Leone, 2026, p. 1). Similar dynamics may have operated in Ndem adjudication, where the priest who administered the oath held considerable power and where the consequences of a false oath could extend beyond the individual to their family and community. A critical legal pluralism must attend to these dimensions alongside the functional aspects of shrine adjudication.

4. METHODOLOGY

This study draws on four main types of sources: colonial records, missionary accounts, early ethnographic writings, and comparative evidence from oath-based adjudication in other African societies.

Colonial records, including the papers of the Native Courts of the Old Calabar District and the records of the Customary Court of Calabar, provide evidence of the interaction between indigenous and colonial legal systems. While these records do not directly describe Ndem shrine adjudication, they provide context for understanding the legal landscape in which it operated. The papers of Mary Slessor, held by the National Library of Scotland, include her court record book from 1905-1906, compiled during her vice-presidency over the Ikot Obong court (National Library of Scotland, n.d.).

Missionary accounts provide some of the most detailed descriptions of Ndem practices, albeit from a hostile perspective. The diaries of William Anderson, a Presbyterian missionary at Duke Town in the 1850s and 1860s, contain numerous references to Ndem sacrifices and rituals. Hope Waddell's *Twenty-Nine Years in the West Indies and Central Africa* (1863) provides detailed observations of Efik religious and legal practices, including the role of the Oku Ndem and the oath-taking ceremonies at Ndem Efik. These accounts must be read critically, as missionaries had a vested interest in portraying Ndem practices as barbaric.

However, they also provide factual details—dates, locations, names—that can be corroborated from other sources.

Early ethnographic writings, particularly those of Percy Talbot (1926) and A. J. H. Latham (1973), provide additional descriptions of Ndem cosmology and ritual practice. Latham's *Old Calabar, 1600-1891* is particularly valuable because it synthesises missionary accounts, colonial records, and oral traditions into a detailed historical analysis of Efik society and its legal institutions. Talbot's *The Peoples of Southern Nigeria* (1926) contains extensive ethnographic data on the Efik and their neighbours, including descriptions of the Ndem cult and its judicial functions. These sources are also shaped by colonial assumptions, but they contain valuable observational data that can be used with appropriate caution.

Comparative evidence from oath-based adjudication in other African societies, including the Tiv Swem oath (Irom et al., 2025), the Idoma Alekwu oath (Unogwu & Odeome, 2025), the Ibibio mbiam oath (Offiong, 1997), and the Ashanti oath-procedure (Rattray, 1929), provides a framework for interpreting the fragmentary evidence about Ndem adjudication. This comparative approach is necessary because the direct evidence for Ndem judicial procedure is limited. By examining how oath-based adjudication operated in better-documented contexts, we can develop analytical categories that can be applied, with caution, to the Ndem case.

The study acknowledges significant limitations. The evidence for Ndem adjudication is fragmentary and mediated by colonial and missionary sources that were often hostile to indigenous religion. The reconstruction presented here is necessarily tentative and should be understood as a hypothesis to be tested against further evidence, rather than a definitive account.

5. THE PROCEDURE OF NDEM ADJUDICATION: A COMPARATIVE RECONSTRUCTION

The procedure of Ndem adjudication can be reconstructed, with appropriate caution, by combining the fragmentary direct evidence with comparative evidence from oath-based adjudication in other African societies. The following account should be understood as a reconstruction based on analogy, not as a description directly attested in the sources.

Oath-based adjudication in African societies typically followed a pattern in which parties to a dispute presented their case to a ritual specialist, swore an oath invoking spiritual powers, and then awaited the manifestation of divine judgment. Among the Tiv, the Swem oath served as a mechanism for correcting wrongs and settling disputes. The ritual process was typically public, with disputants and witnesses gathered in the presence of elders. Participants recited formal declarations of innocence and invoked the spiritual authority of Swem to judge veracity (Irom et al., 2025). The Tiv believed that swearing falsely before Swem would bring death or misfortune, and this belief made the oath an effective tool for social control (Akiga, 1939; Bohannan, 1957).

Among the Idoma, the Alekwu oath operated similarly. Alekwu was believed to have the power to protect, reward, and punish. Anyone who took the Alekwu oath falsely was believed to die. The mere threat of the Alekwu oath was often sufficient to induce confession or settlement, because no one wanted to risk the spiritual consequences of a false oath (Unogwu & Odeome, 2025).

The Idoma believed that "anyone who takes the 'Alekwu Oath' falsely will die. And as usual with humans, nobody deliberately wants to die, so whenever there is a threat of 'Alekwu Oath,' in any dispute, the truth must be revealed and matter settled amicably" (Unogwu & Odeome, 2025, p. 108). In most cases, "a mere threat of 'Alekwu' sends fear into any body involved in a crime or adultery. The person involves begs for settlement or own up and confesses to the crime immediately" (Unogwu & Odeome, 2025, p. 108).

Among the Ibibio, the mbiam oath functioned in a comparable manner. The Ibibio believed that "if he or she swore on it deceitfully he or she was bound to die" (Offiong, 1997, p. 442). The Idiong society administered ordeals (ukang) or native oaths (mbiam) in order to establish the truth, and the belief in the potency of mbiam was central to the traditional system of social control (Akpan, 2017). As Offiong (1997) explains, "belief in ancestor spirits, the political importance of the elders and their crucial role as the intermediaries between the ancestors and the living, and the Ibibio belief in the supernatural powers of mbiam (oath) promote conflict resolution and social control in general" (p. 441). Comparison of conflict resolution in official courts and in the elders' council reveals that the latter "has advantages over the former because it is holistic" (Offiong, 1997, p. 441).

The Ndem oath appears to have followed a comparable pattern. Parties would present their case to the priest of the relevant Ndem shrine. The priest would explain the oath and its consequences. The parties would then swear before the shrine, invoking the Ndem to witness their truthfulness and punish them if they lied. The fear of spiritual sanction—illness, drowning, or other misfortune—was the primary enforcement mechanism. Waddell (1863) noted that "before him and his idol the covenants of tribes and families were sealed by oath" (as cited in Latham, 1973, p. 30). This suggests that oaths at the Ndem shrine were used to ratify agreements between groups, not just to settle disputes between individuals.

This procedure had several features that made it effective as a system of adjudication. It was accessible, in that anyone could bring a case to the shrine regardless of wealth or status. It was trusted, because the spiritual sanctions were believed to be real and inescapable. It was final, because there was no appeal from the judgment of the Ndem. And it was reconciling, because the goal was not to declare a winner and a loser but to restore harmony by establishing the truth.

However, the procedure also had features that raise ethical concerns. The fear of spiritual sanction could be mobilised against vulnerable participants. The priest who administered the oath held considerable power, and there is no evidence that this power was subject to checks. The consequences of a false oath could extend beyond the individual to their family and community, creating collective pressure that might lead to coerced confessions. As the Sierra Leone study notes, oath-taking practices "may operate through fear, reinforce gendered power relations and lead to coercion and psychological harm" (Oath-Taking, Legal Pluralism and Human Rights in Sierra Leone, 2026, p. 1). Similar dynamics may have operated in Ndem adjudication, particularly in cases involving women accused of adultery or witchcraft. These dimensions of shrine adjudication must be acknowledged alongside its functional aspects.

6. THE EVIDENCE FOR NDEM ADJUDICATION

The evidence for Ndem adjudication comes from several sources. The most direct evidence is from missionary accounts, which describe oath-taking at Ndem shrines. Waddell (1863), writing in 1846, noted that "before him and his idol the covenants of tribes and families were sealed by oath" (as cited in Latham, 1973, p. 30). This suggests that oaths at the Ndem shrine were used to ratify agreements between groups, not just to settle disputes between individuals.

Talbot (1926) provides additional evidence about the Ndem shrine at Parrot Island, noting that slaves who took refuge there belonged to Ndem Efik, and that the priest received tribute in the form of leopard skins. This suggests that the shrine exercised a form of jurisdiction over persons who sought its protection, a function analogous to the right of sanctuary in medieval European law. Talbot also documented the complex pantheon of Ndem spirits, each associated with specific water bodies and communities, which indicates a differentiated system of spiritual jurisdiction that mirrored the political geography of the region.

Indirect evidence comes from the survival of oath-based adjudication in related communities. The Ejagham, who share the Ndem cosmology with the Efik, used shrine adjudication for disputes over land and water boundaries (Eba, 2026). The Ibibio, who are closely related to the Efik, used the mbiam oath as a final arbiter in difficult cases, and the belief in its potency was central to their traditional system of social control (Offiong, 1997). The practice of oath-taking at shrines has not disappeared in the Cross River region; it has migrated to other shrines and other contexts.

Further evidence comes from the persistence of shrine adjudication in contemporary Nigeria. Although the Ndem shrines themselves are no longer active as judicial institutions, similar practices continue in other parts of the country. Among the Idoma, the Alekwu shrine serves as an arbiter in controversial disputes, and the oath is believed to have the power to kill those who swear falsely (Unogwu & Odeome, 2025). The Idoma believe that "the practice of 'Alekwu Oath' is never obsolete. It is very much practiced up to date whenever there is a dispute, that elders cannot handle by themselves, Alekwu is resorted to as the final arbiter, in spite of westernization, the 'Alekwu' is still held in high esteem among the Idomas" (Unogwu & Odeome, 2025, p. 108). This persistence suggests that the underlying logic of oath-based adjudication remains culturally intelligible, even where specific institutions have declined.

Colonial court records provide indirect evidence of the interaction between indigenous and colonial legal systems. The establishment of Native Courts under British rule created a parallel system of justice that gradually supplanted the indigenous tribunals. However, these records also show that colonial officials sometimes relied on indigenous oath-taking procedures to resolve cases that the formal courts could not handle. In the Old Calabar District, for example, cases involving witchcraft accusations were sometimes referred to traditional oath-taking procedures because the Native Courts were unable to produce evidence that would satisfy English legal standards (Latham, 1973).

7. THE DECLINE OF NDEM JURISPRUDENCE

The decline of Ndem jurisprudence was not a sudden event but a gradual process spanning the nineteenth and early twentieth centuries. It was driven by the interlocking forces of economic change, Christianisation, and colonial legal expansion.

Economic change was perhaps the most fundamental force. As Latham (1973) demonstrates, the transformation of the Efik economy from fishing to slave trading and then to palm oil production had profound consequences for the Ndem cult. The Ndem were, in origin, fishing deities. Their association with specific water bodies made sense in a society organised around fishing and riverine trade. As the Efik elite became increasingly involved in long-distance trade, the Ndem cult lost its centrality. "As the slave trade replaced fishing as the basis of the Efik economy, the importance of the Ndem cult diminished, and the new cult of Ekpe, connected to the refurbished secret society, largely superseded it in influence" (Latham, 1973, p. 4). The Ndem priesthood, once a position of great authority, "had by 1847 fallen into disrepute, and the emoluments were so trifling that only a decayed gentleman could be found to accept the honour" (Latham, 1973, p. 55).

Christianisation was the second major force. Missionaries, beginning with the Presbyterians in the 1840s, actively opposed the Ndem cult. They condemned the practice of sacrifice, including the sacrifice of albino girls to Ndem Efik at Parrot Island, which was documented by missionaries in 1851, 1856, and 1862 (Latham, 1973, pp. 30-31). They also condemned oath-taking at shrines, which they saw as invoking false gods. The missionary campaign against Ndem was part of a broader assault on indigenous religious practices, an assault that was largely successful in the Calabar area by the early twentieth century. As Hackett (n.d.) notes, "the cults of the local deities and water spirits have suffered considerably in the face of both Christianization and modernization. They have been obvious targets for attack by both Christians and progressives" (Chapter Five, p. 1).

Colonial legal expansion was the third force. The Native Courts established under British rule were given jurisdiction over matters of "native law and custom," but they operated on principles derived from English law. Oath-taking at shrines was not recognised as a valid legal procedure. The courts required evidence that could be evaluated according to rational standards; spiritual sanctions had no place in this framework. The Native Courts thus offered an alternative forum for dispute resolution, one that was backed by the coercive power of the state rather than by the fear of spiritual punishment. As the colonial legal system expanded, the jurisdiction of the shrine courts contracted. By the early twentieth century, the judicial functions of the Ndem shrines had ceased to operate in any formal sense.

The decline of Ndem jurisprudence was not, however, a simple story of progress. The Native Courts were often inaccessible to ordinary people, particularly in rural areas. They were expensive, slow, and staffed by officials who were unfamiliar with local languages and customs. The spiritual sanctions that had enforced Ndem judgments were replaced by the threat of imprisonment, which was effective for some but not for all. For many people, particularly the poor and the marginalised, the decline of shrine adjudication meant a loss of access to justice. As Offiong (1997) notes in the Ibibio context, the elders' council "has advantages over the formal court because it is holistic" (p. 441), addressing not just the legal dispute but the

social relationships that it disrupted. The same could be said of Ndem adjudication.

8. THE LEGACY OF NDEM JURISPRUDENCE

The decline of Ndem jurisprudence has left a complex legacy. On the one hand, the formal legal system that replaced it has not been able to fill the gap in access to justice. The Nigerian legal system is notoriously slow, expensive, and corrupt. The Customary Courts, which are supposed to apply indigenous law, often operate on principles that are alien to the communities they serve. Many people, particularly in rural areas, have no effective access to any court at all.

On the other hand, the memory of Ndem jurisprudence persists. In the oral histories of the Cross River region, the Ndem shrines are remembered not as sites of superstition but as places where justice was done. The belief in the spiritual sanctions that enforced shrine judgments has not entirely disappeared. When disputes arise that the formal legal system cannot resolve, people sometimes turn to traditional mechanisms—not the Ndem shrines themselves, which are no longer active, but other institutions that carry forward elements of the old jurisprudence.

The Iban Isong, for example, an Efik indigenous institution for redressing gendered violence, represents a parallel juridical assembly that exercised "binding moral and social authority" over community members (Bassey & Nnochiri, 2026, p. 87). While not directly linked to Ndem shrines, Iban Isong shares the Ndem cosmology's emphasis on collective sanctions and moral authority. Its survival suggests that indigenous juridical forms have not been entirely extinguished; they have adapted to new circumstances. As Bassey and Nnochiri (2026) argue, "Iban Isong challenges colonial and neotraditional narratives that depict precolonial Efik women as passive subjects" and demonstrates "the existence of indigenous juridical mechanisms for gender justice" (p. 88).

The persistence of oath-based adjudication in other parts of Nigeria, such as the Alekwu oath among the Idoma and the mbiam oath among the Ibibio, also suggests that the underlying logic of spiritual sanction remains culturally intelligible. This persistence raises the question of whether indigenous legal institutions could be recognised and integrated into the contemporary justice system, as a way of filling the gap in access to justice. The Sierra Leone study on oath-taking proposes a "cultural leveraging" framework for "strengthening justice institutions while safeguarding dignity" (Oath-Taking, Legal Pluralism and Human Rights in Sierra Leone, 2026, p. 1). A similar approach might be possible in Nigeria, though it would require careful attention to the coercive and hierarchical dimensions of oath-based adjudication.

The legacy of Ndem jurisprudence also includes its contribution to ecological governance. Udoka (2025) argues that the Ndem cult regulated fishing, waste, and natural oil seeps through a system of "choreographic jurisprudence" in which rituals and taboos enforced environmental norms. The decline of this system has left the waters of the Niger Delta without effective protection, contributing to the ecological catastrophe that now afflicts the region. As Udoka (2025) notes, "when the river stops dancing, people die" (p. 1). The Ndem shrines were not just courts of law; they were institutions of environmental governance, and their decline has had consequences that

extend far beyond the resolution of individual disputes.

9. CONCLUSION

This paper has examined the indigenous jurisprudence of Ndem in the Cross River estuary, arguing that Ndem shrines constituted a functional legal system with identifiable procedures and enforcement mechanisms. Drawing on colonial records, missionary accounts, and comparative evidence from oath-based adjudication in other African societies, the paper has reconstructed the practices through which Ndem shrines functioned as tribunals for the most intractable disputes. It has analysed the decline of Ndem jurisprudence, driven by economic change, Christianisation, and the expansion of colonial legal institutions. And it has considered the consequences of that decline for access to justice in the contemporary Cross River region.

The significance of this study lies in four areas. First, it contributes to the recovery of indigenous legal knowledge, demonstrating that African communities developed sophisticated systems of adjudication that deserve to be taken seriously as law. Second, it contributes to debates about legal pluralism, showing how indigenous and state legal systems interacted—and continue to interact—in complex ways. Third, it contributes to contemporary policy discussions about access to justice, suggesting that the recognition and integration of indigenous legal institutions could help to fill the gap left by the decline of shrine adjudication. Fourth, it contributes to the emerging field of ecological jurisprudence, demonstrating that indigenous legal systems often embedded environmental norms within their procedures, offering resources for contemporary environmental governance.

The paper has significant limitations. The evidence for Ndem adjudication is fragmentary, drawn from hostile missionary sources and from comparative evidence that may not map perfectly onto the Efik case. The reconstruction presented here is necessarily tentative. Further research, including archaeological investigation of shrine sites and more systematic collection of oral histories, could provide a fuller picture of how Ndem shrines operated as judicial institutions. The paper has also not fully explored the gendered dimensions of Ndem adjudication, which would require a more detailed analysis of how women experienced and navigated shrine justice.

Despite these limitations, the study makes a case for taking indigenous jurisprudence seriously. The Ndem shrines were not primitive or superstitious; they were institutions through which communities sought to resolve disputes and maintain social harmony. Their decline was not a triumph of civilisation over barbarism but a loss of a functioning system of justice. Recognising that loss is the first step toward imagining what a genuinely pluralistic and accessible legal system might look like in contemporary Nigeria. The river, which once served as witness to the oaths sworn at its shrines, continues to flow—but the jurisprudence that animated its waters has been largely forgotten. Recovering it is a task not just of historical interest but of contemporary urgency.

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